

treason, he hath it in cases of lessor crimes : but this we deny, for if it appears that he hath power to commit in one case only, how can we then without authority say he has that power in other cases ? he is not a conservator of the peace ; Justice Rokeby only says he is in the nature of a conservator of the peace : we are now bound by the cases of *The Queen and Derby*, and *The King and Earbury*.

The Secretary of State is no conservator nor a justice of the peace, quasi secretary, within the words or equity of the Stat. 24 Geo. 2, admitting him (for arguments sake) to be a conservator, the preamble of the statute shews why it was made, and for what purpose ; the only grantor of a warrant therein mentioned, is a justice of the peace ; justice of peace and conservator are not convertible terms ; the cases of construction upon old statutes, in regard to the warden of the Fleet, the Bishop of Norwich, &c. are not to be applied to cases upon modern statutes. The best way to construe modern statutes is to follow the words thereof ; let us compare a justice of peace and a conservator ; the justice is liable to actions, as the statute takes notice, it is applicable to him who acts by warrant directed to constables ; a conservator is not intrusted with the execution of laws, which by this Act is meant statutes, which gives justices jurisdiction ; a conservator is not liable to actions ; he never acts : he is almost forgotten ; there never was an action against a conservator of the peace as such ; he is antiquated, and could never be thought of when this Act was made ; and ad ea quæ frequenter accidunt jura adaptantur. There is no act of a constable or tithingman as conservator taken notice of in the statute ; will the Secretary of State be ranked with the highest or lowest of these conservators ? the Statute of Jac. 1, for officers acting by authority to plead the general issue, and give the special matter in evidence, when considered with this Statute of 24 Geo. 2, the latter seems to be a second part of the Act of Jac. 1, and we are all clearly of opinion that neither the Secretary of State, nor the messengers, are within the Stat. 24 Geo. 2, but if the messengers had been within it, as they did not take a constable [291] with them according to the warrant, that alone would have been fatal to them, nor did they pursue the warrant in the execution thereof, when they carried the plaintiff and his books, &c. before Lovel Stanhope, and not before Lord Halifax ; that was wrong, because a Secretary of State cannot delegate his power, but ought to act in this part of his office personally.

The defendants having failed in their defence under the Statute 24 Geo. 2 ; we shall now consider the special justification, whether it can be supported in law, and this depends upon the jurisdiction of the Secretary of State ; for if he has no jurisdiction to grant a warrant to break open doors, locks, boxes, and to seize a man and all his books, &c. in the first instance upon an information of his being guilty of publishing a libel, the warrant will not justify the defendants : it was resolved by B. R. in the case of *Shergold v. Holloway*, that a justice's warrant expressly to arrest the party will not justify the officer, there being no jurisdiction. 2 Stran. 1002. The warrant in our case was an execution in the first instance, without any previous summons, examination, hearing the plaintiff, or proof that he was the author of the supposed libels ; a power claimed by no other magistrate whatever (Scroggs C.J. always excepted) ; it was left to the discretion of these defendants to execute the warrant in the absence or presence of the plaintiff, when he might have no witness present to see what they did ; for they were to seize all papers, bank bills, or any other valuable papers they might take away if they were so disposed ; there might be nobody to detect them. If this be lawful, both Houses of Parliament are involved in it, for they have both ruled, that privilege doth not extend to this case. In the case of *Wilkes*, a member of the Commons House, all his books and papers were seized and taken away ; we were told by one of these messengers that he was obliged by his oath to sweep away all papers whatsoever ; if this is law it would be found in our books, but no such law ever existed in this country ; our law holds the property of every man so sacred, that no man can set his foot upon his neighbour's close without his leave ; if he does he is a trespasser, though he does no damage at all ; if he will tread upon his neighbour's ground, he must justify it by law. The defendants have no right to avail themselves of the usage of these warrants since the Revolution, and if that would have justified them they have not averred it in their plea, so it could not be put, nor was in issue at the trial ; we can safely say there is no law in this country to justify the defendants in what they have done ; if there was, it would destroy all the comforts of society ; for papers are

often the dearest property a man can have. This case was compared to that of stolen goods; Lord Coke denied the lawfulness of granting warrants to search for stolen goods, 4 Inst. 176, 177, though now it prevails to be law; but in that case the justice and the informer must proceed with great caution; there must be an oath that the [292] party has had his goods stolen, and his strong reason to believe they are concealed in such a place; but if the goods are not found there, he is a trespasser; the officer in that case is a witness; there are none in this case, no inventory taken; if it had been legal many guards of property would have attended it. We shall now consider the usage of these warrants since the Revolution; if it began then, it is too modern to be law; the common law did not begin with the Revolution; the ancient constitution which had been almost overthrown and destroyed, was then repaired and revived; the Revolution added a new buttress to the ancient venerable edifice: the K. B. lately said that no objection had ever been taken to general warrants, they have passed sub silentio: this is the first instance of an attempt to prove a modern practice of a private office to make and execute warrants to enter a man's house, search for and take away all his books and papers in the first instance, to be law, which is not to be found in our books. It must have been the guilt or poverty of those upon whom such warrants have been executed, that deterred or hindered them from contending against the power of a Secretary of State and the Solicitor of the Treasury, or such warrants could never have passed for lawful till this time. We are inclined to think the present warrant took its first rise from the Licensing Act, 13 & 14 Car. 2, c. 33, and are all of opinion that it cannot be justified by law, notwithstanding the resolution of the Judges in the time of Cha. 2, and Jac. 2, that such search warrants are lawful. State Trials, vol. 3, 58, the trial of Carr for a libel. There is no authority but of the Judges of that time that a house may be searched for a libel, but the twelve Judges cannot make law; and if a man is punishable for having a libel in his private custody, as many cases say he is, half the kingdom would be guilty in the case of a favourable libel, if libels may be searched for and seized by whomsoever and wheresoever the Secretary of State thinks fit. It is said it is better for the Government and the public to seize the libel before it is published; if the Legislature be of that opinion they will make it lawful. Sir Samuel Astry was committed to the Tower, for asserting there was a law of State distinct from the common law. The law never forces evidence from the party in whose power it is; when an adversary has got your deeds, there is no lawful way of getting them again but by an action. 2 Stran. 1210, *The King and Cornelius*. *The King and Dr. Purnell*, Hil. 22 Geo. B. R. Our law is wise and merciful, and supposes every man accused to be innocent before he is tried by his peers: upon the whole, we are all of opinion that this warrant is wholly illegal and void. One word more for ourselves; we are no advocates for libels, all Governments must set their faces against them, and whenever they come before us and a jury we shall set our faces against them; and if juries do not prevent them they may prove fatal to liberty, destroy Government and introduce anarchy; but tyranny is better than anarchy, and the worst Government better than none at all.

Judgment for the plaintiff.

[293] HILARY TERM, 6 GEO. III. 1766.

ADDISON *versus* GREY. C. B. Debt upon an arbitration-bond; an award good in part and bad in part.

Debt upon an arbitration-bond. The defendant craves oyer of the condition, which is, that if the defendant Gray and one Mary Birkwood shall perform the award of William Bradley and John Bellamy, arbitrators, chosen between the said Gray and Birkwood, and the plaintiff Addison, concerning all matters in difference between them, so as the award be made in writing on or before the first of September then next, then, &c. which being read and heard, the defendant pleads no award was made. The plaintiff replies, and sets out an award, whereby the arbitrators awarded that all actions, suits, quarrels, and disputes, to the day of the date of the bond should cease between the parties, and that the plaintiff should hold and enjoy three acres of meadow in Glatton till the 10th of October then next, and then he should quit the